person deserting the military or naval service of the United States in time of peace. The loss of rights of citizenship prior to August 22, 1912, imposed by law upon deserters from the military or naval service may be mitigated or remitted by the President where the offense was committed in time of peace and where the exercise of such clemency will not be prejudicial to the public interests. (R. S. § 1998; Aug. 22, 1912, c. 336, § 1, 37 Stat. 356.)

R. S. § 1998 from Act Mar. 3, 1865, c. 79, § 21, 13 Stat. 490.

**§ 12. Same; Civil War.** All persons who deserted the military or naval service of the United States and did not return thereto or report themselves to a provost marshal within sixty days after the issuance of the proclamation by the President, dated March 11, 1865, are deemed to have voluntarily relinquished and forfeited their rights of citizenship, as well as their right to become citizens; and such deserters shall be forever incapable of holding any office of trust or profit under the United States or of exercising any rights of citizens thereof. No soldier or sailor, however, who faithfully served according to his enlistment until April 19, 1865, and who, without proper authority or leave first obtained, quit his command or refused to serve after that date, shall be held to be a deserter from the Army or Navy; and this section shall be construed solely as a removal of any disability such soldier or sailor may have incurred by the loss of citizenship and of the right to hold office in consequence of his desertion. (R. S. §§ 1996, 1997.)

R. S. § 1996 from Act Mar. 3, 1865, c. 79, § 21, 13 Stat. 490.

R. S. § 1997 from Act July 19, 1867, c. 28, 15 Stat. 14.

**§ 13. Protection to naturalized citizens abroad.** All naturalized citizens of the United States while in foreign countries are entitled to and shall receive from this Government the same protection of persons and property which is accorded to native-born citizens. (R. S. § 2000.)

From Act July 27, 1868, c. 249, § 2, 15 Stat. 224.

**§ 14. Release of citizens imprisoned by foreign governments.** Whenever it is made known to the President that any citizen of the United States has been unjustly deprived of his liberty by or under the authority of any foreign government, it shall be the duty of the President forthwith to demand of that government the reasons of such imprisonment; and if it appears to be wrongful and in violation of the rights of American citizenship, the President shall forthwith demand the release of such citizen, and if the release so demanded is unreasonably delayed or refused, the President shall use such means, not amounting to acts of war, as he may think necessary and proper to obtain or effectuate the release; and all the facts and proceedings relative thereto shall as soon as practicable be communicated by the President to Congress. (R. S. § 2001.)

From Act July 27, 1868, c. 249, § 3, 15 Stat. 224.

**§ 15. Expatriation; right of.** Whereas the right of expatriation is a natural and inherent right of all people, indispensable to the enjoyment of the rights of life, liberty, and the pursuit of happiness; and whereas in the recognition of this principle this Government has freely received emigrants from all nations, and invested them with the rights of citizenship; and whereas it is claimed that such American citizens, with their descendants, are subjects of foreign states, owing allegiance to the governments thereof; and whereas it is necessary to the maintenance of public peace that this claim of foreign allegiance should be promptly and finally disavowed: Therefore any declaration, instruction, opinion, order, or decision of any officer of the United States which denies, restricts, impairs, or questions the right of expatriation, is declared inconsistent with the fundamental principles of the Republic. (R. S. § 1999.)

From Act July 27, 1868, c. 249, § 1, 15 Stat. 223.

**§ 16. Same; during time of war.** No American citizen shall be allowed to expatriate himself when the country is at war. (Mar. 2, 1907, c. 2534, § 2, 34 Stat. 1228.)

**§ 17. Same; presumption.** Any American citizen shall be deemed to have expatriated himself when he has been naturalized in any foreign State in conformity with its laws, or when he has taken an oath of allegiance to any foreign State.

When any naturalized citizen shall have resided for two years in the foreign State from which he came, or for five years in any other foreign State it shall be presumed that he has ceased to be an American citizen, and the place of his general abode shall be deemed his place of residence during said years. Such presumption may be overcome on the presentation of satisfactory evidence to a diplomatic or consular officer of the United States, under such rules and regulations as the Department of State may prescribe. Duplicates of any evidence, registration, or other acts required by this section shall be filed with the Department of State for record. (Mar. 2, 1907, c. 2534, §§ 2, 7, 34 Stat. 1228, 1229.)

**§ 17a. Same; marriage to foreigner.** A citizen of the United States may upon marriage to a foreigner make a formal renunciation of his or her United States citizenship before a court having jurisdiction over naturalization of aliens, but no citizen may make such renunciation in time of war, and if war shall be declared within one year after such renunciation then such renunciation shall be void. (May 24, 1934, c. 344, § 3, 48 Stat. 797.)

**§ 18. Repatriation of expatriated citizens.** Any person who, while a citizen of the United States and during the World War in Europe, entered the military or naval service of any country at war with a country against whom the United States declared war, who shall be deemed to have lost his citizenship by reason of any oath or obligation taken by him for the purpose of entering such service, may resume his citizenship by taking the oath of allegiance to the United States prescribed by the naturalization law and regulations, and such oath may be taken before any court of the United States or of any State authorized by law to naturalize aliens or before any consul of the United States, and certified copies thereof shall be sent by such court or consul to the Department of State and the Immigration and Naturalization Service.

Any individual who claims to have resumed his citizenship under the provisions of this section may, upon the payment of a fee of $1, make application to the Commissioner of Immigration and Naturalization, accompanied by two photographs of the applicant, for a certificate of repatriation. Upon proof to the satisfaction of the commissioner that the applicant is a citizen and that the citizenship was resumed as claimed, such individual shall be furnished a certificate of repatriation by the commissioner, but only if such individual is at the time within the United States. The certificate of repatriation issued under this subdivision shall have the same effect as a certificate issued by a court having naturalization jurisdiction, and the provisions of subdivisions (b) and (c) of section 399c of this title shall apply in respect of proceedings and certificates of repatriation under this subdivision in the same manner and to the same extent, including penalties, as they apply in respect of proceedings and certificates of citizenship issued under such section. (June 29, 1906, c. 3592, § 4 (12), 34 Stat. 596; May 9, 1918, c. 69, § 1, 40 Stat. 545; June 21, 1930, c. 559, 46 Stat. 791; June 10, 1933, Ex. Or. 6166, § 14.)

## Chapter 2.—ELECTIVE FRANCHISE

Sec.
31. Race, color, or previous condition not to affect right to vote.
32. Interference with freedom of elections.

**Section 31. Race, color, or previous condition not to affect right to vote.** All citizens of the United States who are otherwise qualified by law to vote at any election by the people in any State, Territory, district, county, city, parish, township, school district, municipality, or other territorial subdivision, shall be entitled and allowed to vote at all such elections, without distinction of race, color, or previous condition of servitude; any constitution, law, custom, usage,

or regulation of any State or Territory, or by or under its authority, to the contrary notwithstanding. (R. S. § 2004.)

From Act May 31, 1870, c. 114, § 1, 16 Stat. 140.

**§ 32. Interference with freedom of elections.** No officer of the Army or Navy of the United States shall prescribe or fix, or attempt to prescribe or fix, by proclamation, order, or otherwise, the qualifications of voters in any State, or in any manner interfere with the freedom of any election in any State, or with the exercise of the free right of suffrage in any State. (R. S. § 2003.)

From Act Feb. 25, 1865, c. 52, § 1, 13 Stat. 437.

## Chapter 3.—CIVIL RIGHTS

Sec.

41. Equal rights under the law.
42. Property rights of citizens.
43. Civil action for deprivation of rights.
44. Exclusion of jurors on account of race or color.
45. Same; jurisdiction of prosecutions.
46. Same; review of proceedings.
47. (1) Conspiracies; preventing officer from performing duties. (2) Same; to intimidate party, witness or juror, or obstruct justice. (3) Same; to deprive citizen of rights or privileges.
48. Same; action for neglect to prevent.
49. Prosecution of violation of certain laws.
50. Commissioners; appointment of persons to execute warrants.
51. Marshal; to obey precepts; refusing to receive or execute process.
52. Fees; certain officers.
53. Same; persons appointed to execute process.
54. Speedy trial.
55. Aid of military and naval forces.
56. Peonage abolished.

**Section 41. Equal rights under the law.** All persons within the jurisdiction of the United States shall have the same right in every State and Territory to make and enforce contracts, to sue, be parties, give evidence, and to the full and equal benefit of all laws and proceeedings for the security of persons and property as is enjoyed by white citizens, and shall be subject to like punishment, pains, penalties, taxes, licenses, and exactions of every kind, and to no other. (R. S. § 1977.)

From Act May 31, 1870, c. 114, § 16, 16 Stat. 144.

**§ 42. Property rights of citizens.** All citizens of the United States shall have the same right, in every State and Territory, as is enjoyed by white citizens thereof to inherit, purchase, lease, sell, hold, and convey real and personal property. (R. S. § 1978.)

From Act Apr. 9, 1866, c. 31, § 1, 14 Stat. 27.

**§ 43. Civil action for deprivation of rights.** Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress. (R. S. § 1979.)

From Act Apr. 20, 1871, c. 22, § 1, 17 Stat. 13.

**§ 44. Exclusion of jurors on account of race or color.** No citizen possessing all other quallfications which are or may be prescribed by law shall be disqualified for service as grand or petit juror in any court of the United States, or of any State on account of race, color, or previous condition of servitude; and any officer or other person charged with any duty in the selection or summoning of jurors who shall exclude or fail to summon any citizen for the cause aforesaid shall, on conviction thereof, be deemed guilty of a misdemeanor, and be fined not more than $5,000. (Mar. 1, 1875, c. 114, § 4, 18 Stat. 336.)

**§ 45. Same; jurisdiction of prosecutions.** The district courts of the United States shall have, exclusively of the courts of the several States, cognizance of all crimes and offenses against and violations of, the provisions of section 44 of this title. The district attorneys, marshals, and deputy marshals of the United States, and United States commissioners with powers of arresting and imprisoning or bailing offenders against the laws of the United States, are hereby specially authorized and required to institute proceedings against every person who shall violate the provisions of section 44 of this title, and cause him to be arrested and imprisoned or bailed, as the case may be, for trial before such court of the United States, or Territorial court, as by law has cognizance of the offense, and such district attorneys shall cause such proceedings to be prosecuted to their termination as in other cases. Nothing contained in this section shall be construed to deny or defeat any right of civil action accruing to any person, whether by reason of this act or otherwise; and any district attorney who shall willfully fail to institute and prosecute the proceedings herein required, shall, for every such offense, forfeit and pay the sum of $500 to the person aggrieved thereby, to be recovered by an action of debt, with full costs, and shall, on conviction thereof, be deemed guilty of a misdemeanor, and be fined not less than $1,000 nor more than $5,000. Judgment for the penalty in favor of the party aggrieved against any such district attorney, or a judgment upon an indictment against any such district attorney shall be a bar to either prosecution respectively. (Mar. 1, 1875, c. 114, § 3, 18 Stat. 336; May 28, 1896, c. 252, § 19, 29 Stat. 184; Mar. 3, 1911, c. 231, § 291, 36 Stat. 1167.)

**§ 46. Same; review of proceedings.** All cases arising under the provisions of section 44 of this title in the courts of the United States shall be reviewable by the Supreme Court of the United States, without regard to the sum in controversy, under the same provisions and regulations as are provided by law for the review of other causes in said court. (Mar. 1, 1875, c. 114, § 5, 18 Stat. 337.)

See section 345 of Title 28.

**§ 47. (1) Conspiracies; preventing officer from performing duties.** If two or more persons in any State or Territory conspire to prevent, by force, intimidation, or threat, any person from accepting or holding any office, trust, or place of confidence under the United States, or from discharging any duties thereof; or to induce by like means any officer of the United States to leave any State, district, or place, where his duties as an officer are required to be performed, or to injure him in his person or property on account of his lawful discharge of the duties of his office, or while engaged in the lawful discharge thereof, or to injure his property so as to molest, interrupt, hinder, or impede him in the discharge of his official duties;

**(2) Same; to intimidate party, witness or juror, or obstruct justice.** If two or more persons in any State or Territory conspire to deter, by force, intimidation, or threat, any party or witness in any court of the United States from attending such court, or from testifying to any matter pending therein, freely, fully, and truthfully, or to injure such party or witness in his person or property on account of his having so attended or testified, or to influence the verdict, presentment, or indictment of any grand or petit juror in any such court, or to injure such juror in his person or property on account of any verdict, presentment, or indictment lawfully assented to by him, or of his being or having been such juror; or if two or more persons conspire for the purpose of impeding, hindering, obstructing, or defeating, in any manner, the due course of justice in any State or Territory, with intent to deny to any citizen the equal protection of the laws, or to injure him or his property for lawfully enforcing, or attempting to enforce, the right of any person, or class of persons, to the equal protection of the laws;

**(3) Same; to deprive citizen of rights or privileges.** If two or more persons in any State or Territory conspire or go in disguise on the highway or on the premises of another, for the purpose of depriving, either directly or indirectly, any person or class of persons of the equal protection of the laws, or of equal privileges and immunities under the laws; or for the purpose of preventing or hindering the constituted authorities of any State or Territory from